Shifts in Independent Expenditures by Party and Committee Type After *Citizens United*: Evidence from Federal Election Commission Data on U.S. Senate and Presidential Elections, 2001–2020

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Abstract

Citizens United v. FEC (2010) and *SpeechNow.org v. FEC* (2010) removed limits on independent expenditures (IEs) by corporations and unions and permitted the creation of IE-only committees, known as Super PACs. Existing research has established that IEs rose after 2010 but has not separated that increase by the committees that made the expenditures or by the party that benefited from them. This study measured how the amount and source of IEs benefiting Democratic and Republican candidates in U.S. Senate and presidential elections changed between the five election cycles before *Citizens United* (2001–2010) and the five after (2011–2020). All 510,563 IE transactions in the Federal Election Commission's bulk data for these races were classified by benefiting party and by committee type, aggregated by cycle, and analyzed descriptively and with least-squares regressions. IEs rose from $812.1 million to $5.97 billion (635%). The increase was larger for Republicans (772.8%) than for Democrats (536.8%), and the Democratic lead in IEs fell from $136.2 million (40.3%) to $69.9 million (2.4%). Super PACs accounted for 63.1% of post-2010 IEs, while the share made by party committees fell from 62.7% to 9.8%; in regression models, Super PACs gained 59.1 percentage points of IE market share ($p < .01$). Republican-benefiting candidates gained 13.1 percentage points more Super PAC market share than Democratic-benefiting candidates ($p < .05$), but this partisan difference was not robust to an alternative classification of hybrid PACs, and the partisan difference in total IE growth was not statistically significant in any model. The results indicate that *Citizens United* restructured who makes IEs in federal elections far more clearly than it created a durable partisan advantage.

Keywords: *Citizens United*, independent expenditures, Super PACs, campaign finance, Federal Election Commission, political parties

Introduction

In *Citizens United v. Federal Election Commission*, 558 U.S. 310 (2010), the Supreme Court held that independent expenditures "do not give rise to corruption or the appearance of corruption" (558 U.S. at 357) and struck down the prohibition on IEs funded from corporate and union treasuries. Two months later, the D.C. Circuit extended that reasoning in *SpeechNow.org v. FEC*, 599 F.3d 686 (D.C. Cir. 2010), holding that contributions to groups that make only IEs could not be limited either (599 F.3d at 694–95). Together the two decisions created the independent expenditure-only committee, or Super PAC (Alschuler et al. 2018, 2305; Briffault 2012, 1644). An independent expenditure is spending on "a communication that expressly advocates the election or defeat of a clearly identified candidate" that is not coordinated with any candidate or campaign (Federal Election Commission n.d.-c); coordinated spending is instead treated as a contribution and remains subject to limits.

Before 2010, IEs were regulated through a sequence of statutes and decisions that this study takes as background. The Federal Election Campaign Act of 1971 (Pub. L. No. 92-225) and its 1974 amendments (Pub. L. No. 93-443) created the FEC and imposed contribution and expenditure limits (Hollihan 1975, 267; Stefanuca 2008, 238). *Buckley v. Valeo*, 424 U.S. 1 (1976), upheld contribution limits as a safeguard against quid pro quo corruption but struck down limits on independent spending as restrictions on speech (Hellman 2011, 954). *Austin v. Michigan Chamber of Commerce*, 494 U.S. 652 (1990), building on *FEC v. Massachusetts Citizens for Life, Inc.*, 479 U.S. 238 (1986), then allowed Congress to bar spending from corporate treasuries because of the "distorting effects" of wealth accumulated with the help of the corporate form (Dana 2000, 349), and *McConnell v. FEC*, 540 U.S. 93 (2003), narrowly upheld the Bipartisan Campaign Reform Act of 2002 (BCRA, Pub. L. No. 107-155), which banned unregulated "soft money" contributions to parties and restricted corporate- and union-funded "electioneering communications" near elections (Briffault 2002, 1181; Epstein 2004, 231). Many of the groups that later became Super PACs had operated as "527" organizations under these rules, which barred them from express advocacy and from broadcast references to candidates within thirty days of a primary or sixty days of a general election (Klumpp, Mialon, and Williams 2016, 8). *Citizens United* overruled *Austin* and extended *Buckley*'s protection of independent spending to corporations and unions (Raban 2011, 361; Wiman 2023, 172). Not every actor was affected equally: traditional PACs saw no change in what they could raise or spend, while groups that make only IEs could now accept unlimited contributions from individuals, corporations, and unions (Klumpp, Mialon, and Williams 2016, 8–10). Because the rulings relaxed limits for some committee types and not others, they should be expected to change not only the total amount of IEs but also the share of IEs made by each type of committee. This

study calls that share a committee type's *IE market share*: the percentage of all IEs in a given period made by that committee type.

Empirical work on *Citizens United* has mostly compared states whose corporate-spending bans the decision invalidated ("treated" states) with states that had no such bans. Those studies find that IEs by outside groups roughly doubled or tripled in treated states and that spending shifted from parties toward businesses, single-election groups, and ideological groups (Spencer and Wood 2014, 342–47; Boyea 2020; LaRowe 2016, 52; Abdul-Razzak, Prato, and Wolton 2020). Other scholars caution that spending was already rising before 2010 and that the decision changed where money came from more than how much was spent (Bannon 2018, 171–76; Schotland 1998, 150). The BCRA's soft-money ban, which pushed money from parties toward IEs after 2002, is one proposed cause of that earlier rise (Sebold and Dowdle 2020, 61–63). On partisanship, Klumpp, Mialon, and Williams (2016, 10–12) report that Republicans' probability of winning state legislative elections rose after 2010 and that Republican Super PACs spent about twice as much as Democratic Super PACs in the 2010 and 2012 cycles. What has not been studied is the combination of these two questions at the federal level: which committee types drove the post-2010 increase in IEs, and whether the new sources of IEs benefited one party more than the other in Senate and presidential races (Chaturvedi and Holloway 2017).

This study therefore asks: to what extent did *Citizens United* change the amount and source of IEs benefiting Democratic and Republican candidates in U.S. Senate and presidential elections from 2001 to 2020? Two hypotheses were tested. H1: IEs increased after *Citizens United* at a rate exceeding the pre-2010 trend, and the increase was led by Super PACs, which displaced party committees as the largest source of IEs. H2: Republican candidates benefited more than Democratic candidates from the rise of Super PACs, both in the growth of total IEs and in the share of their IEs that came from Super PACs. Here "benefit" is defined strictly in terms of IE dollars; whether those dollars changed election outcomes is outside the scope of this study.

Data and Methods

Data Source and Scope

All data come from the FEC's publicly available bulk data files (Federal Election Commission n.d.-a). For each of the ten biennial election cycles from 2001–2002 through 2019–2020, three files were used: the "contributions from committees to candidates and independent expenditures" file (itpas2), which contains transaction-level IE records; the candidate master file (cn), which gives each candidate's party and office; and the committee master file (cm), which gives each committee's FEC type code. Every political committee, and every person or group that spends more than $250 a year on IEs, must report those expenditures to the FEC, so these files are the complete official record of IEs (Whitaker 2024). The

analysis begins with the 2001–2002 cycle so that the pre-*Citizens United* period includes the BCRA's enactment, and it ends with 2019–2020, the most recent cycle with complete data when the study began. Because the FEC reports data by two-year cycle, the pre-*Citizens United* period is defined as the five cycles ending 2002–2010 and the post-*Citizens United* period as the five cycles ending 2012–2020. The entire 2009–2010 cycle is treated as pre-decision because *Citizens United* was decided in January 2010 and *SpeechNow.org* in March 2010, leaving little of the cycle for new committees to form; the handling of the Super PACs that did form in 2010 is described below.

The study is limited to U.S. Senate and presidential elections. These are the most expensive and most visible federal races, so any effect of the rulings should appear most clearly in them, and they differ enough in geography, electorate, and media environment (Sides, Vavreck, and Warshaw 2022) to show whether changes depend on the type of race. House races were excluded because they are far more numerous and far less expensive per race, which makes cycle-to-cycle comparison with statewide and national races difficult. Presidential records include all candidates who filed for the office, not only general-election nominees. Only IEs benefiting Democratic or Republican candidates were retained; the roughly $44 million of IEs tied to third-party, independent, or unidentifiable candidates over the twenty years was excluded.

Processing and Classification

I wrote the data-processing program in Python using the pandas and NumPy libraries, with figures produced in Matplotlib, seaborn, and Pillow; the code is publicly archived (Yamali 2026a), and the full processed output is deposited in the Harvard Dataverse (Yamali 2026b). The program first combined the ten cycles' files and kept transactions with FEC transaction type codes 24E (IE supporting a candidate), 24A (IE opposing a candidate), and 24N, which yielded 689,180 records across all federal offices. Records with negative amounts, which represent refunds or corrections (2,007 records totaling −$20.9 million), were removed rather than netted against positive records. Each IE was then linked to the candidate master file to obtain the candidate's party and office, and the 514,969 records for Senate and presidential candidates were retained.

Each IE was assigned a *benefiting party*. An expenditure supporting a Democratic candidate or opposing a Republican candidate was classified as benefiting Democrats, and an expenditure supporting a Republican or opposing a Democrat was classified as benefiting Republicans. This treatment matters because most IE dollars are negative advertising: in the post-2010 period, 69% of Democratic-benefiting and 72% of Republican-benefiting IE dollars opposed a candidate rather than supported one.

Each IE was also linked to the committee master file and assigned a *committee category* based on the committee's FEC type code (Federal Election Commission n.d.-b; see Appendix A). Type O committees are Super PACs; types N, Q, and V are treated as traditional PACs; type U committees are

single-candidate IE committees (“individual IE committees”); and types X, Y, and Z are party committees. All other codes, including non-committee independent expenditors (type I), communication cost filers (type C), and qualified hybrid PACs (type W), were grouped as “Other/Unknown.” Because the committee master file for each cycle lists a committee’s current type and some committees change type over time, the program used each committee’s most recent type code for all of its records; the consequences of this choice are examined in Section 3.4. Seventeen records totaling $32,390 were attributed to candidate committees, which by definition cannot make IEs in their own races; these were treated as reporting errors and dropped. Finally, 1,556 pre-2011 records totaling $43.6 million, made by committees classified as Super PACs ($41.2 million of it in the 2009–2010 cycle), were excluded so that the baseline period would not contain partial post-decision activity. For comparison, Briffault (2012, 1644) estimates that Super PACs spent about $65 million on IEs across all federal races in 2010. The final dataset contains 510,563 IE records: 284,419 in Senate races and 226,144 in presidential races.

Analysis

The analysis was carried out in three parallel tracks: Senate races, presidential races, and both combined (“aggregate”). For each track, IEs were summed by cycle, benefiting party, and committee category, and percentage changes between the pre- and post-*Citizens United* periods were computed as (post − pre) ÷ pre × 100. IE market share was computed as a committee category’s IEs divided by all IEs in the same period, or, in the regression panels, in the same cycle, party, and office.

Three sets of regressions were estimated on balanced panels in which each observation is one cycle × benefiting party × office cell ($N = 40$ in the aggregate track and 20 in each office-specific track). First, to test growth in IEs, log(1 + IE dollars) was regressed on an indicator for post-2010 cycles, an indicator for Republican-benefiting IEs, their interaction, and controls for presidential-year cycles and (in the aggregate track) presidential races. The interaction term tests whether Republican IEs grew more than Democratic IEs after 2010. Second, to test the restructuring of sources, the panel was expanded to one observation per committee category within each cell ($N = 200$ and 100), and each category’s market share was regressed on category indicators and on category × post-2010 interactions, which estimate how many percentage points of market share each category gained or lost after 2010. Third, to test partisan differences in Super PAC reliance, Super PAC market share within each cell was regressed on the same post-2010, Republican, and interaction terms by weighted least squares, with each cell weighted by its total IE dollars so that cycles with little spending (for example, presidential cells in midterm years) do not dominate the estimates. All models use heteroskedasticity-robust (HC1) standard errors, with two-tailed p-values based on the normal approximation, and 95% confidence intervals were also computed by bootstrap resampling of panel rows (2,000 replications). Because the rulings applied to every federal

election at once, no untreated comparison group exists, and the design is therefore a before–after comparison rather than a causal test; the limitations this imposes are discussed in Section 4.

Results

Growth in Independent Expenditures by Party

In the five cycles before *Citizens United*, $812.1 million in IEs was made in Senate and presidential races on behalf of Democratic and Republican candidates; in the five cycles after, $5.97 billion was made, an increase of 635%. The number of IE transactions rose from 53,483 to 457,080, and the number of distinct committees making IEs rose from 831 to 1,979. Republican-benefiting IEs grew by 772.8% (from $337.9 million to $2.95 billion) and Democratic-benefiting IEs by 536.8% (from $474.1 million to $3.02 billion). Democrats received more IE support in both periods, but the gap narrowed: Democrats led by $136.2 million (40.3%) before the decision and by $69.9 million (2.4%) after it.

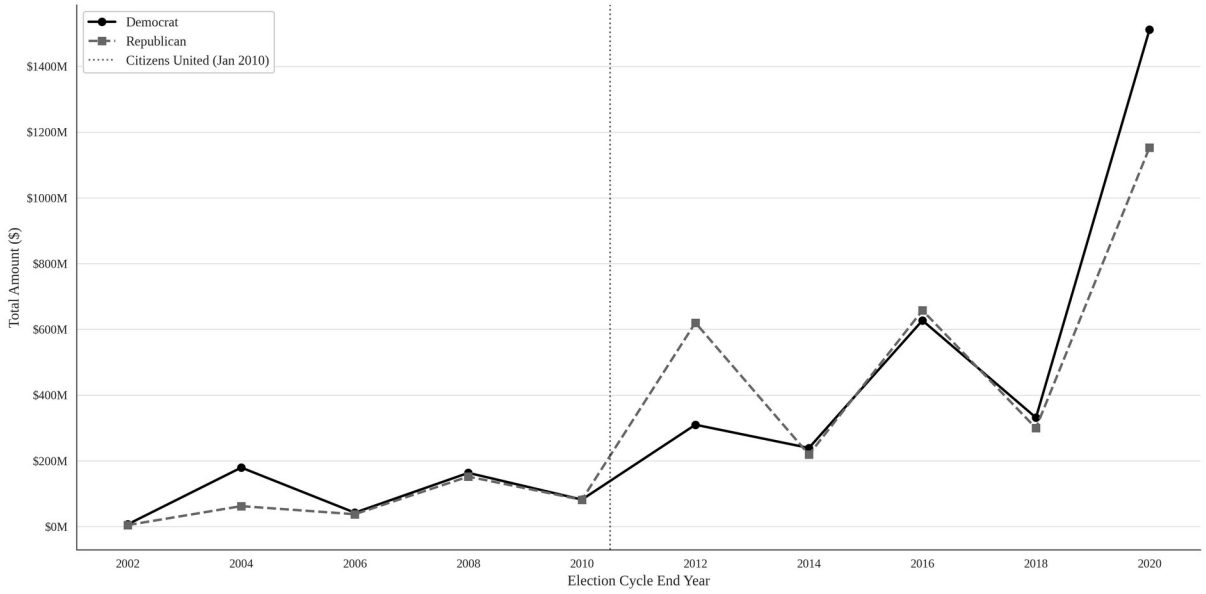


Figure 1. Graph created by the student researcher using Matplotlib, 2026, from FEC bulk data. Total independent expenditures benefiting Democratic and Republican candidates in U.S. Senate and presidential elections combined, by election cycle, 2001–2020. The dotted line marks *Citizens United* (January 2010).

Figure 1 shows that the two parties' IEs track each other in most cycles and that the partisan gaps are concentrated in three presidential-year cycles. In 2003–2004 Democrats received $117.3 million (188.5%) more than Republicans, in 2011–2012 Republicans received $310.4 million (100.2%) more than Democrats, and in 2019–2020 Democrats received $358.8 million (31.1%) more. All three gaps come from presidential races (Appendix B): in 2012, for example, Republican-benefiting presidential IEs were $445.4 million against $162.8 million for Democrats, while Senate IEs that cycle differed by only $27.8 million. Table 1 breaks the period totals down by office. Before *Citizens United*, Democrats held a large

lead in presidential IEs ($242.8 million versus $139.6 million, or 63.5% of presidential IEs) and a smaller lead in Senate IEs ($231.3 million versus $198.3 million). After the decision, Republicans led slightly in Senate races (by $37.6 million) and Democrats in presidential races (by $107.5 million), so that neither party held a consistent advantage across both types of race.

Table 1. Total independent expenditures by office and benefiting party, before and after *Citizens United*

Period	Office	Benefiting party	Total IEs ($)	% of period total
2001–2010	Senate	Democratic	231,328,478	28.5
	Senate	Republican	198,288,123	24.4
	Presidential	Democratic	242,816,949	29.9
	Presidential	Republican	139,641,412	17.2
	Both	Democratic	474,145,427	58.4
	Both	Republican	337,929,535	41.6
	Both	Both	812,074,962	100.0
2011–2020	Senate	Democratic	1,727,045,597	28.9
	Senate	Republican	1,764,633,884	29.6
	Presidential	Democratic	1,292,193,744	21.6
	Presidential	Republican	1,184,721,025	19.8
	Both	Democratic	3,019,239,341	50.6
	Both	Republican	2,949,354,909	49.4
	Both	Both	5,968,594,250	100.0

Note. Table created by the student researcher using Python and Google Sheets, 2026, from FEC bulk data. Percentages are of all IEs in the same period across both offices and parties.

Table 2 reports the regression test of these patterns. The post-*Citizens United* coefficient is positive in all three models: 1.698 in the aggregate model ($p < .05$), 2.151 in the Senate model ($p < .01$), and 1.244 in the presidential model ($p < .10$). Because the dependent variable is logged, these correspond to increases of roughly 446%, 760%, and 247% in a cell's IE dollars after 2010, holding party and cycle type constant. The post-*Citizens United* × Republican interaction is positive in every model but far from statistically significant ($p \geq .47$), so the larger percentage growth of Republican IEs cannot be distinguished from chance with ten cycles of data. Presidential-year cycles carry much larger IEs than midterm cycles (coefficient 3.123 in the aggregate model, $p < .01$).

Table 2. OLS models of logged independent expenditures by benefiting party

Independent variable	Model 1: Aggregate	Model 2: Senate	Model 3: Presidential
Post-*Citizens United*	1.698**	2.151***	1.244*
	(0.822)	(0.529)	(0.662)
Republican	−0.400	−0.140	−0.660
	(0.899)	(0.684)	(1.025)
Post-*Citizens United* × Republican	0.529	0.154	0.904
	(1.180)	(0.778)	(1.251)
Presidential office	−2.395***	—	—
	(0.590)		
Presidential cycle	3.123***	0.301	5.944***
	(0.606)	(0.346)	(0.616)
Constant	16.037***	17.185***	12.494***
	(0.687)	(0.526)	(0.793)
N	40	20	20
Adjusted R^2	.597	.622	.846

Note. Table created by the student researcher using Python and Google Sheets, 2026. The dependent variable is log(1 + total IE dollars) in each cycle × party × office cell. HC1 robust standard errors in parentheses; two-tailed tests. The presidential office indicator is omitted from Models 2 and 3 because office does not vary within them. *p < .10; **p < .05; ***p < .01.

Shifts in the Sources of Independent Expenditures

Table 3 shows that the composition of IE sources changed far more than the partisan balance did. Before *Citizens United*, party committees made 62.7% of all IEs and traditional PACs 25.1%; the Other/Unknown category, consisting mostly of independent expenditors (persons or groups that are not political committees but spend more than $250 a year on IEs) and hybrid PACs, made 12.0%; and individual IE committees made 0.1%. After the decision, Super PACs immediately became the dominant source, making $3.77 billion, or 63.1% of all IEs, a share almost identical to the one party committees had held before. Party committees' share fell by 52.9 percentage points, to 9.8%, even though the dollar amount they spent rose by 15.0%, from $509.5 million to $586.1 million. Traditional PACs' share fell from 25.1% to 14.3% while their dollars more than quadrupled. In other words, every category spent more after 2010, but Super PACs captured most of the growth.

Table 3. Total independent expenditures by committee category, both parties and both offices, before and after *Citizens United*

Committee category	2001–2010: Total IEs ($)	%	2011–2020: Total IEs ($)	%
Super PAC	0	0.0	3,767,041,490	63.1
Party committee	509,480,610	62.7	586,054,167	9.8
Traditional PAC	203,942,957	25.1	852,136,236	14.3
Other/Unknown[a]	97,795,511	12.0	760,905,537	12.7
Individual IE committee	855,884	0.1	2,456,820	0.0
Total	812,074,962	100.0	5,968,594,250	100.0

Note. Table created by the student researcher using Python and Google Sheets, 2026, from FEC bulk data. [a]Before 2011, independent expenditors accounted for $52.9 million, hybrid PACs for $29.4 million, and communication cost filers for $15.5 million of this category; after 2010, independent expenditors accounted for $586.8 million, hybrid PACs for $167.0 million, and communication cost filers for $7.1 million.

The restructuring took a different form in each type of race (Table 4). IEs grew faster in Senate races (712.7%, from $429.6 million to $3.49 billion) than in presidential races (547.6%, from $382.5 million to $2.48 billion), and the number of distinct committees making IEs rose from 475 to 1,238 in Senate races and from 558 to 1,287 in presidential races. Before *Citizens United*, party committees dominated Senate IEs (72.9%) more completely than presidential IEs (51.4%), where traditional PACs already made 34.2%. After the decision, Super PACs took a similar share in both (65.2% and 60.1%), but the displaced spending came from different places: party committees kept 15.2% of Senate IEs and actually increased their Senate dollars by 69.7% ($313.1 million to $531.3 million), whereas in presidential races they fell to 2.2% and their dollars declined by 72.1% ($196.4 million to $54.7 million). Traditional PACs, by contrast, kept a 23.6% share of presidential IEs, $520.9 million of it benefiting Democrats, while falling to 7.6% in Senate races. The median IE fell from $100 to $34 in Senate races and from $187 to $34 in presidential races as the number of transactions rose roughly eightfold, which reflects the growth of large numbers of small, itemized digital and direct-mail expenditures alongside the very large television buys that account for most dollars.

Table 4. Total independent expenditures by committee category and office, both parties, before and after *Citizens United*

Office	Committee category	2001–2010: Total IEs ($)	%	2011–2020: Total IEs ($)	%
Senate	Super PAC	0	0.0	2,277,600,550	65.2
	Party committee	313,055,244	72.9	531,311,743	15.2
	Traditional PAC	73,130,459	17.0	266,544,890	7.6
	Other/Unknown	43,199,866	10.1	414,142,750	11.9
	Individual IE committee	231,032	0.1	2,079,548	0.1
	Total	429,616,601	100.0	3,491,679,481	100.0
Presidential	Super PAC	0	0.0	1,489,440,940	60.1
	Party committee	196,425,366	51.4	54,742,424	2.2
	Traditional PAC	130,812,498	34.2	585,591,346	23.6
	Other/Unknown	54,595,645	14.3	346,762,787	14.0
	Individual IE committee	624,852	0.2	377,272	0.0
	Total	382,458,361	100.0	2,476,914,769	100.0

Note. Table created by the student researcher using Python and Google Sheets, 2026, from FEC bulk data. Percentages are of all IEs for the same office in the same period.

Table 5 and Figure 2 give the regression estimates of these shifts, in which each category's market share within a cycle × party × office cell is the dependent variable. In the aggregate model, Super PACs gained 59.1 percentage points of market share after 2010 ($p < .01$; bootstrap 95% CI [49.4, 68.5]), party committees lost 32.6 points, and traditional PACs lost 36.0 points (both $p < .01$). The Senate and presidential models show the same pattern with different emphasis: in Senate races the loss fell mainly on party committees (−47.5 points), whereas in presidential races it fell mainly on traditional PACs (−52.2 points). The Other/Unknown and individual IE committee categories did not change significantly in any model.

Table 5. OLS models of committee-category IE market share

Independent variable	Model 1: Aggregate	Model 2: Senate	Model 3: Presidential
Post-*Citizens United* × Super PAC	0.591*** (0.048)	0.598*** (0.046)	0.585*** (0.088)
Post-*Citizens United* × Party committee	−0.326*** (0.089)	−0.475*** (0.106)	−0.177* (0.101)
Post-*Citizens United* × Traditional PAC	−0.360*** (0.094)	−0.199** (0.091)	−0.522*** (0.131)
Post-*Citizens United* × Other/Unknown	0.097* (0.052)	0.076 (0.051)	0.118 (0.095)
Post-*Citizens United* × Individual IE committee	−0.002 (0.006)	0.000 (0.006)	−0.004 (0.010)
Constant	0.415*** (0.092)	0.636*** (0.115)	0.193** (0.096)
N	200	100	100
Adjusted R^2	.493	.659	.581

Note. Table created by the student researcher using Python and Google Sheets, 2026. The dependent variable is a committee category's share of IE dollars within a cycle × party × office cell, as a proportion; a coefficient of 0.591 is a gain of 59.1 percentage points. Each model also includes committee-category indicators (party committee as the reference), a Republican indicator, and presidential-cycle and (Model 1) presidential-office indicators, which are omitted from the table. HC1 robust standard errors in parentheses; two-tailed tests. *p < .10; **p < .05; ***p < .01.

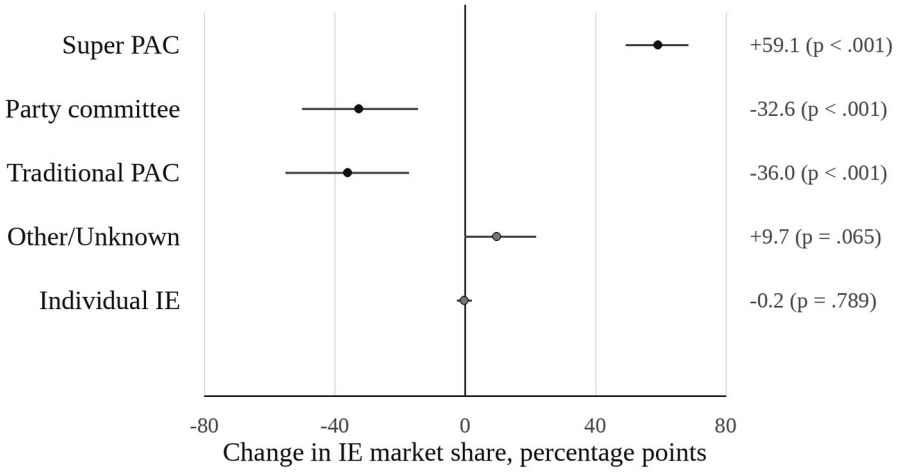


Figure 2. Chart created by the student researcher using Pillow, 2026. Estimated change in IE market share after *Citizens United* by committee category, aggregate model (Table 5, Model 1). Dots are coefficient estimates in percentage points; bars are bootstrap 95% confidence intervals (2,000 replications).

Partisan Differences in Sources

Before *Citizens United* the two parties drew on similar sources: party committees made 65.3% of Democratic-benefiting IEs and 59.1% of Republican-benefiting IEs, and traditional PACs made 25.5% and 24.6% respectively (Appendix C). After the decision the parties diverged. Super PACs made 69.8% of Republican-benefiting IEs but 56.6% of Democratic-benefiting IEs, and Republican-benefiting Super

PAC IEs exceeded Democratic-benefiting ones by $350.7 million ($2.06 billion versus $1.71 billion). Traditional PACs, in contrast, remained the second-largest Democratic source at $699.2 million (23.2%), while Republican traditional-PAC IEs rose only to $152.9 million (5.2%). Party committees also moved in opposite directions: their IEs for Republicans rose by 55.7% while their IEs for Democrats fell by 11.2%. Figure 3 displays these differences.

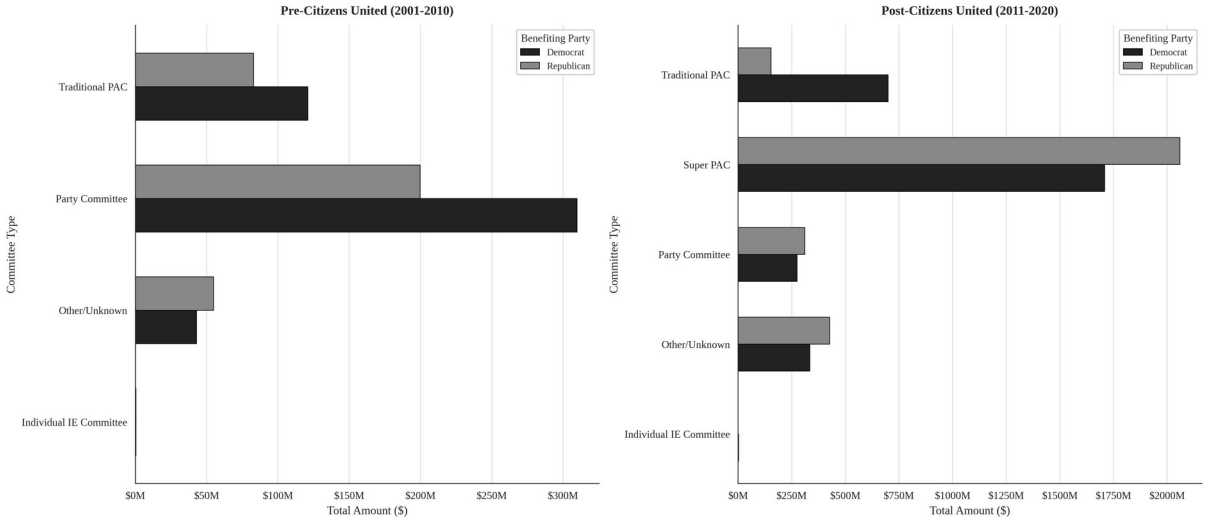


Figure 3. Chart created by the student researcher using Matplotlib, 2026. Total independent expenditures by committee category and benefiting party, Senate and presidential elections combined, before (left) and after (right) *Citizens United*. The horizontal axes differ: the pre-decision panel runs to $300 million and the post-decision panel to $2,000 million. Super PACs do not appear in the left panel because no Super PAC IEs are included before 2011.

Table 6 tests whether the Republican lean of Super PAC spending is statistically distinguishable from chance. In the aggregate model, the post-*Citizens United* × Republican coefficient is 0.131 ($p < .05$), meaning that Republican-benefiting cells gained 13.1 percentage points more Super PAC market share after 2010 than Democratic-benefiting cells; the presidential model gives 21.2 points ($p < .05$), and the Senate model 7.2 points (not significant). The bootstrap intervals for these interactions, however, include zero (aggregate [−4.6, 26.2]; presidential [−50.9, 87.4]), so the evidence rests on the robust-standard-error tests alone. The Super PAC advantage also does not appear in dollar levels: in a model of logged Super PAC IEs in the post-2010 cycles only, the Republican coefficient is −0.252 ($p = .78$) in the aggregate track and is not significant in either office. Thus the data show that a larger *share* of Republican IEs came through Super PACs, not that Super PACs delivered significantly more dollars to Republicans once cycle type and office are held constant.

Table 6. Weighted least-squares models of Super PAC IE market share

Independent variable	Model 1: Aggregate	Model 2: Senate	Model 3: Presidential
Post-*Citizens United*	0.555***	0.601***	0.499***
	(0.027)	(0.036)	(0.016)
Republican	−0.001	0.003	−0.001
	(0.016)	(0.022)	(0.007)
Post-*Citizens United* × Republican	0.131**	0.072	0.212**
	(0.060)	(0.084)	(0.093)
Presidential office	−0.061	—	—
	(0.059)		
Presidential cycle	0.059	0.052	0.450*
	(0.066)	(0.069)	(0.231)
Constant	−0.011	−0.023	−0.446*
	(0.042)	(0.035)	(0.231)
N	40	20	20
Adjusted R^2	.762	.715	.822

Note. Table created by the student researcher using Python and Google Sheets, 2026. The dependent variable is Super PACs' share of IE dollars within a cycle × party × office cell, as a proportion. Cells are weighted by their total IE dollars. HC1 robust standard errors in parentheses; two-tailed tests. *$p < .10$; **$p < .05$; ***$p < .01$.

Robustness Checks

Two checks qualify the results above. First, adding a linear cycle trend to the Table 2 models absorbs the post-2010 level shift: the trend coefficient is positive and significant in every track (aggregate 0.537, $p < .01$; Senate 0.483, $p < .01$; presidential 0.591, $p < .01$), while the post-*Citizens United* coefficient becomes negative and insignificant (−0.988, $p = .38$; −0.263, $p = .47$; −1.712, $p = .11$). With only five cycles on each side of the decision, the data cannot distinguish a one-time jump in 2010 from a steady exponential rise that was already under way, which is consistent with Bannon's (2018) caution. The source-composition results in Table 5 are unaffected by this check, because Super PACs did not exist before 2010 regardless of trend.

Second, the partisan Super PAC result in Table 6 depends on how committees are classified. Three features of the classification work against Democrats' measured Super PAC share. (1) Hybrid PACs, which maintain a Super PAC-style non-contribution account alongside a traditional contribution account, are counted as traditional PACs (type V) or Other/Unknown (type W) rather than as Super PACs; $588.8 million of post-2010 IEs by type V committees falls in the traditional PAC category, $561.4 million of it benefiting Democrats. (2) Committees are typed by their most recent registration, so a committee that converted from a Super PAC to a hybrid PAC carries the hybrid code for all cycles; the largest case is Priorities USA Action, whose $198.5 million of IEs in 2012 and 2016, made while it was registered as a Super PAC, is counted as traditional PAC spending. (3) Type 24N records ($22.4 million,

concentrated before 2011) are communication costs reported by unions and corporations rather than IEs proper, and the program treated them as supporting rather than opposing the named candidate. When the pipeline is rerun with each committee typed by its registration in the cycle in which it spent, hybrid PACs placed in their own category, and only 24A and 24E records retained, the Super PAC market-share gain in Table 5 grows to 62.7 points, but the post-*Citizens United* × Republican coefficient in Table 6 falls to 0.059 ($p = .46$) in the aggregate model and 0.058 ($p = .70$) in the presidential model, and Democratic-benefiting Super PAC and hybrid PAC IEs combined ($2.36 billion) exceed Republican-benefiting ones ($2.16 billion). Under this alternative the period totals in Table 1 change by at most 3% (the pre-2010 Republican total falls from $337.9 million to $327.5 million) and the Table 2 coefficients by less than 0.01. The partisan source difference reported in Table 6 should therefore be read as sensitive to the treatment of hybrid PACs, whereas the overall restructuring of IE sources is not.

Discussion

The first hypothesis is supported in part. IEs in Senate and presidential races were 635% higher in the five cycles after *Citizens United* than in the five before, and Super PACs, which could not exist before the two 2010 decisions, made 63.1% of post-decision IEs and displaced party committees as the largest source. The regression estimate that Super PACs gained 59.1 percentage points of IE market share is large, precise, and consistent across Senate and presidential races. What the data do not establish is that the *level* of IEs jumped in 2010 beyond its prior trajectory: once a linear trend is allowed, the post-2010 indicator is not significant. The most defensible reading is that *Citizens United* and *SpeechNow.org* changed the channels through which an already-growing stream of independent spending flowed, and that any acceleration of the stream itself cannot be separated from the pre-existing trend with ten cycles of data.

The second hypothesis receives weaker support than the raw totals suggest. Republican-benefiting IEs did grow faster (772.8% versus 536.8%), and the Democratic lead in IEs fell from 40.3% to 2.4%, which is consistent with the ruling having functioned as an equalizing mechanism for Republicans. But the partisan difference in growth is not statistically significant in any model, and the finding that Republicans drew a significantly larger share of their IEs from Super PACs holds under this study's committee classification but not under one that assigns hybrid PACs separately and types committees cycle by cycle. The honest conclusion is that both parties shifted the large majority of their IEs into Super PAC-type vehicles after 2010, and that the apparent Democratic reliance on "traditional" PACs is mostly spending by hybrid committees whose non-contribution accounts operate like Super PACs. This qualifies the comparison with Klumpp, Mialon, and Williams (2016), who found Republican

Super PACs outspending Democratic ones two to one in 2010 and 2012: that gap is visible in this study's 2011–2012 presidential data, but it did not persist across the decade.

A related point concerns what "benefit" means. This study measured benefit as IE dollars, not as votes or seats. Klumpp, Mialon, and Williams (2016) found that Republicans' probability of winning state legislative elections rose after 2010 and attributed part of that change to corporate spending, but that result concerns state races and does not establish that IE dollars translated into federal election outcomes. The present data show only that IE resources, which are widely assumed to raise a candidate's chances, were distributed more evenly between the parties after *Citizens United* than before; whether that redistribution changed any Senate or presidential result is a separate question that would require outcome data and a research design that this study does not have.

These findings fit with, and extend, the state-level literature. Spencer and Wood (2014) and LaRowe (2016) found that nearly every category of spending rose in states where *Citizens United* invalidated bans, and Abdul-Razzak, Prato, and Wolton (2020) found a shift from parties to outside groups; this study documents the same pattern at the federal level and quantifies it by committee type. The shift matters for transparency because Super PACs and hybrid PACs may accept unlimited contributions from nonprofits and other entities that do not disclose their own donors, whereas party committees and traditional PACs cannot (Briffault 2012; Whitaker 2024); the migration of IE market share from party committees (−52.9 points) to Super PACs (+63.1 points) is therefore also a migration toward sources whose ultimate funders are harder to identify.

Several alternative explanations and limitations apply. The BCRA's 2002 soft-money ban redirected money from parties toward IEs before 2010 (Sebold and Dowdle 2020), and the growth of digital fundraising and advertising over the same period would have raised spending with or without the rulings; the before–after design captures the BCRA within the baseline period but cannot separate these influences from the Court's decisions, and no untreated group exists because the rulings applied to all federal elections at once. Dollar amounts are nominal, so part of the measured growth reflects inflation. The FEC bulk files are the complete official record, but IE reporting has known imperfections: amounts may be reported both when an advertisement is disseminated and when it is paid for, and a committee's type reflects its registration rather than the account from which a given expenditure was made. The classification choices described in Section 3.4, which were made before the robustness check was run, are the main source of sensitivity in the partisan results. The panels contain only ten cycles, which limits statistical power for the party × period interactions, and the *p*-values rely on a normal approximation to robust standard errors that is optimistic at these sample sizes; the bootstrap intervals, which are wider, are the more conservative guide. Finally, the results describe Senate and presidential races and may not generalize to House or state elections.

Future work should re-estimate the source models with cycle-specific committee types and a separate hybrid PAC category as the primary specification, extend the panel through the 2022 and 2024 cycles, deflate amounts to constant dollars, and add covariates such as incumbency, competitiveness, and the number of contested races per cycle. A further question raised by Figure 1 is why the partisan gaps in IEs appear only in presidential years and not in Senate races in the same cycles.

Conclusion

Using every independent expenditure reported to the FEC in U.S. Senate and presidential races from 2001 to 2020, this study found that *Citizens United* and *SpeechNow.org* were followed by a 635% increase in IEs and by a wholesale restructuring of their sources: Super PACs, which did not exist before 2010, made 63.1% of post-decision IEs, while party committees fell from 62.7% to 9.8% of the total. Republican-benefiting IEs grew faster than Democratic-benefiting IEs and the parties' totals converged, but the partisan differences in growth were not statistically significant, and the finding that Republicans relied more heavily on Super PACs did not survive an alternative classification of hybrid PACs. The clearest effect of the 2010 decisions in these data is therefore not a partisan one but a structural one: independent spending moved out of party committees and into committees that may accept unlimited and less traceable contributions. Continued measurement of who spends, how much, and for whom remains necessary as elections operate under the framework the two decisions created.

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Appendix A. FEC Committee Type Codes and Study Categories

Table A1. Classification of FEC committee type codes

Code	FEC committee type	Study category	Included
C	Communication cost	Other/Unknown	Yes
D	Delegate committee	Other/Unknown	Yes
E	Electioneering communication	Other/Unknown	Yes
H, S, P	House, Senate, presidential candidate committee	Candidate committee	No
I	Independent expenditor (person or group)	Other/Unknown	Yes
N	PAC, nonqualified	Traditional PAC	Yes
O	Independent expenditure-only (Super PAC)	Super PAC	Yes (post-2010 only)
Q	PAC, qualified	Traditional PAC	Yes
U	Single-candidate independent expenditure	Individual IE committee	Yes
V	Hybrid PAC with non-contribution account, nonqualified	Traditional PAC	Yes
W	Hybrid PAC with non-contribution account, qualified	Other/Unknown	Yes
X, Y	Party, nonqualified and qualified	Party committee	Yes
Z	National party nonfederal account	Party committee	Yes (no records in data)

Note. Table created by the student researcher using Google Sheets, 2026. Code definitions follow the FEC's committee type code descriptions (Federal Election Commission n.d.-b). Candidate committees were excluded because a candidate's own committee cannot make an independent expenditure in its own race; the 17 such records ($32,390) were treated as reporting errors. No type Z records appear among Senate and presidential IEs in 2001–2020.

Appendix B. Independent Expenditures by Cycle, Office, and Party

Table B1. Total independent expenditures ($) by election cycle, office, and benefiting party, 2001–2020

Cycle	Senate: Democratic	Senate: Republican	Presidential: Democratic	Presidential: Republican
2001–2002	6,850,898	4,616,809	49,200	9,039
2003–2004	19,910,538	29,178,820	159,618,453	33,043,764
2005–2006	42,153,309	37,282,353	136,820	323,916
2007–2008	82,646,575	46,509,767	80,744,772	105,553,428
2009–2010	79,767,158	80,700,374	2,267,704	711,265
2011–2012	147,048,852	174,872,540	162,804,273	445,365,773
2013–2014	238,231,244	218,827,041	956,105	193,605
2015–2016	286,225,925	298,613,316	340,876,491	359,036,094
2017–2018	330,535,382	288,317,723	904,320	11,228,747
2019–2020	725,004,194	784,003,264	786,652,555	368,896,806

Note. Table created by the student researcher using Python and Google Sheets, 2026, from FEC bulk data. Presidential totals in midterm cycles reflect spending for or against declared candidates for the next presidential election.

Appendix C. Sources of Independent Expenditures by Party

Table C1. Total independent expenditures by committee category and benefiting party, both offices, before and after *Citizens United*

Benefiting party	Committee category	2001–2010: Total IEs ($)	%	2011–2020: Total IEs ($)	%
Democratic	Super PAC	0	0.0	1,708,147,004	56.6
	Party committee	309,809,643	65.3	275,260,984	9.1
	Traditional PAC	120,960,424	25.5	699,244,833	23.2
	Other/Unknown[a]	42,918,244	9.1	334,232,798	11.1
	Individual IE committee	457,116	0.1	2,353,722	0.1
	Total	474,145,427	100.0	3,019,239,341	100.0
Republican	Super PAC	0	0.0	2,058,894,486	69.8
	Party committee	199,670,967	59.1	310,793,183	10.5
	Traditional PAC	82,982,533	24.6	152,891,403	5.2
	Other/Unknown[a]	54,877,267	16.2	426,672,739	14.5
	Individual IE committee	398,768	0.1	103,098	0.0
	Total	337,929,535	100.0	2,949,354,909	100.0

Note. Table created by the student researcher using Python and Google Sheets, 2026, from FEC bulk data. Percentages are of the same party's IEs in the same period. [a]Democratic Other/Unknown IEs: before 2011, independent expenditors $20.5 million, hybrid PACs $19.6 million, communication cost filers $2.8 million; after

2010, independent expenditors $239.7 million, hybrid PACs $93.5 million. Republican Other/Unknown IEs: before 2011, independent expenditors $32.4 million, communication cost filers $12.7 million, hybrid PACs $9.8 million; after 2010, independent expenditors $347.1 million, hybrid PACs $73.5 million.

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